REPORT

(43)

The Vigilance Unit have forwarded a copy of the CVC reference forwarding a complaint made by one Shri J.K. Pal, against Dr. T.K. Ghosal, Registrar, IIT-Kharagpur. It has *inter-alia* been alleged that Dr. T.K. Ghosal was appointed to the post of Asstt. Registrar on open direct recruitment and not on promotion and he neither fulfilled the required educational qualification of 55% marks in his Master's degree, nor did he have 8 years of experience in the post of Dy. Registrar at the time of applying for the post of Registrar, as required in the advertisement dated 02.12.2009. It has further been implied that the qualification, experience and competence of Dr. Ghosal was relaxed by the competent authorities for appointment to the post of Registrar ignoring the claims of S/Shri B.K. Basu Roy Chowdhury and S. Chatterjee, Dy. Registrars, who satisfied the required qualifications and experience. Shri Ghosal reportedly was penalized by the Hon'ble CIC in the case of Prof. Rajeeb Kumar V/s Dr. A. Patra, PIO, IIT-Kharagpur.

2. The complaint was referred to the Director, IIT-Kharagpur, soliciting his comments. It has been stated that the Institute strictly follows the selection / recruitment procedure for filling up of Group 'A' vacancies as per the Ministry's letter No. 5-11/87-T.6/TD.I, dated 27.03.1990. The vacancies under direct recruitment and promotional quota are taken together through open selection where the internal candidates have to compete with outside candidates. While considering the candidature of the internal candidates, the Ministry's guidelines are kept in view which *inter-alia* states that in the case of promotion to the post of Asstt. Registrar and Dy. Registrar, the educational qualifications prescribed for direct recruitment need not be insisted upon, but only those who are at least graduates, should be eligible for promotion.

3. Dr. D. Gunasekaran, the then Registrar, was granted lien for taking up assignment as Registrar in the Indian Maritime University for a period from 5th December, 2009 to 4th December, 2011. The lien vacancy of the post of Registrar, IIT-Kharagpur, was advertised on 02.12.2009 and all the Dy. Registrars, ie, S/Shri B.K. Basu Roy Chowdhury, S. Chatterjee, A.P. Trivedi and Dr. T.K. Ghosal were called for interview along with the external candidates. No offer has reportedly been made against the said advertisement.

4. Dr. T.K. Ghosal did not have 8 years of regular service as Dy. Registrar at the time of his application for the post of Registrar. However having regard to the fact that Dr. Ghosal has been working at IIT-Kharagpur for over 38 years in various capacities and held Group 'A' positions since 14.03.1995, he was given the officiating charge of the post of Registrar. Dr. Ghosal has been holding the post of Dy. Registrar (acting) from 10.03.2002 to 10.08.2004, in addition to his duties as Asstt. Registrar and on regular basis since 11.08.2004. He continues to hold the substantive post of Dy. Registrar, in-charge of Finance & Accounts.

5. The above officiating arrangement during the lien vacancy of the post of Registrar, as explained in para 4 above, has reportedly been made strictly as per the statutory provision 9(12), duly approved by the Board of Governors, keeping in view Dr. T.K. Ghosal's long experience and competence in administration, finance and accounts.

6. Earlier, Dr. T.K. Ghosal held the post of Asstt. Registrar since 14.03.1995 (Sr. Scale from 19.06.2000). An M.A. in Public Administration (approx. 54% marks) and a Ph.D., Dr. Ghosal was appointed as Asstt. Registrar against the Institute's advertisement dated 9th November, 1993, through open selection. His name was recommended by the then Selection Committee, duly constituted as prescribed under the Act and Statutes of the Institute for such posts, where he was one among the 15 candidates belonging to both internal as well as external.

7. So far as the penalty imposed by the Hon'ble CIC on Dr. Ghosal for delay in furnishing information to Prof. Rajeeb Kumar, it may be stated that the matter is not relevant here.

****

9. The Director

(1) Subject to the Budget provisions made for the specific purpose, the Director shall have the power to incur expenditure in accordance with the procedure as may be laid down by the Board from time to time.

(2) The Director shall have the power to reappropriate funds with respect to different items constituting the recurring budget upto a limit of Rs. 10,000 for each item provided that such re-appropriation will not involve any liability in future years. Every such re-appropriation shall as soon as possible be reported to the Board.

† (3) The Director shall have the power to waive recovery of over-payment upto Rupees Two hundred and fifty to a member of the staff whose basic pay is Rs. 500.00 per mensem or less, not detected within twenty—four months of payment. Every such waiver shall, as soon as possible, be reported to the Board.

(4) The Director shall have the power to write off irrecoverable losses upto Rs. 1000 and of irrecoverable value of stores lost or rendered unserviceable due to fair wear and tear upto Rs. 5,000 in any individual case subject to such stipulations as may be made by the Board from time to time.

(5) The Director shall have the power to fix, on the recommendations of the Selection Committee, the initial pay of an incumbent at a stage higher than the minimum of the scale but not involving more than five increments in respect of posts to which appointment can be made by him under the powers vested in him by the provisions of the Act.

(6) The Director shall have the power to employ technicians and workmen paid from contingencies involving emoluments not exceeding Rs. 7.00 per day per head.

(7) The Director shall have the power to send members of the staff for training or for a course of instruction inside India subject to such terms and conditions as may be laid down by the Board from time to time.

(8) The Director shall have the power to sanction remission or reduction of rents for buildings rendered wholly or partially unsuitable.

(9) The Director shall have the power to sanction temporary allocation of any building for any purpose other than that for which it was constructed.

† Amended vide Ministry of Education letter No. F-11-7/76-T.6 dated 26 October, 1977. Effective from 22 October, 1977.

(10) In exceptional cases, subject to availability of funds, the Director shall have the power to create temporary posts with the approval of the Chairman, of not more than two years' duration on approved scales of pay under report to the Board provided that no such post, of which Director is not the appointing authority, shall be so created.

(11) The Director shall have the power of a Head of Department for purposes of rules in the Account Code, the Fundamental and Supplementary Rules and other rules of the Government in so far as they are applicable or may be made applicable to the conduct of the business of the Institute.

(12) If for any reason the Registrar is temporarily absent for a period not exceeding one month, the Director may take over, or assign to any member of the staff of the Institute, any of the functions of the Registrar as he deems fit. Provided that, if at any time, the temporary absence of the Registrar exceeds one month, the Board may, if it thinks fit, authorise the Director to take over or assign the function of the Registrar as aforesaid, for a period exceeding one month.

(13) All contracts for and on behalf of the Institute, except the one between the Institute and the Director, shall, when authorised by a resolution of the Board passed in that behalf, be in writing and be expressed to be made in the name of the Institute and every such contract shall be executed on behalf of the Institute by the Director, but the Director shall not be personally liable in respect of anything under such contract.

* (14) The Director may, during his absence from headquarters, authorise the Deputy Director or one of the Deans or the seniormost Professor presents to sanction advances for travelling allowance, contingencies and medical treatment of the staff and sign and countersign bills on his behalf and authorise him for assuming such powers of Director as may be specifically delegated to the Deputy Director or one of the Deans or the seniormost Professor present by him in writing.

(15) The Director may, at his discretion, constitute such Committees as he may consider appropriate.

(16) In the event of the occurrence of any vacancy in the office of the Chairman by reason of his death, resignation or otherwise or in the event of the Chairman being unable to discharge his functions owing to absence, illness or any other cause,

* Amended vide Ministry fo Education letter No. F-11-7/76-T.6 dated 26 October, 1977. Effective from 22 October, 1977. Re-amended vide Ministry of Education letter No. F-11-5/82-T.6 dated 15 February 1983.

(8)

APPENDIX

Appendix to Ministry of Human Resource Development letter No. F.5-11/87.T-6/TD.I dt. 27.3.1990 regarding revision of pay-scales of non-teaching employees in the IITs corresponding to Group A employees of the Central Government.

(i) The Assistant Registrars and their equivalents will have a senior scale of Rs. 3000-100-3500-125-5000, placement in which will be after 8 years of service as Assistant Registrar provided they have participated in two training programmes on Education Administration, University Management, Accounts and Finance etc. each of approximately four weeks' duration and their performance appraisal reports are consistently satisfactory. The senior scale will be restricted to 50% of the total strength of Asstt. Registrars and their equivalent grades.

(ii) There will be no Selection Grade for Assistant Registrars and their equivalent grades.

(iii) The minimum qualifications for recruitment of Asstt. Registrars and their equivalent will be a Master's degree with 55% marks. All direct recruitment should be made through all-India advertisement and Selection, on the basis of a written test and interview. 50% of the posts at this level may be filled through promotion from the lower grades. The minimum Educational qualifications mentioned above will not apply in the case of promotion.

(iv) Assistant Registrars and their equivalents will be eligible for promotion to the post of Deputy Registrars and their equivalents to the extent of 25% of the vacancies at that level on completion of 8 years in the senior scale. 75% of the posts of Deputy Registrars and their equivalents shall be filled by direct recruitment through all-India advertisement and Selection.

(v) The appointment of Registrars, and Finance Officers should be on the basis of direct recruitment for a tenure of five years, which can be renewed for a similar term.

(vi) In the case of Finance Officers, the existing practice of appointment by drawing Officers belonging to the Indian Audit and Accounts Service or other similar Services on deputation will continue and their pay will be fixed according to rules within the approved scale mentioned in para 1.

(vii) The qualifications, experience, etc. to be prescribe for open recruitment to the post of Registrars etc. should be as indicated in Annexure.

ANNEXURE

QUALIFICATIONS FOR RECRUITMENT TO THE POSTS OF REGISTRARS, ETC.

REGISTRAR AND EQUIVALENT POSTS :

A postgraduate degree with at least 55% marks or its equivalent grade.

2. At least 15 years of experience as Lecturer/Reader of which 8 years should be in Reader's grade with experience in Educational Administration.

OR

Comparable experience in research establishments and other institutions of higher education

OR

15 years of administrative experience of which 8 years as Deputy Registrar or an equivalent post.

DY. REGISTRAR AND EQUIVALENT POSTS :

1. A postgraduate degree with at least 55% marks or its equivalent grade.

2. 8 years experience as a Lecturer in a college or a university with experience in educational administration

OR

Comparable experience in research establishments and other institutions of higher education

OR

8 years administrative experience as Assistant Registrar or in a post carrying a scale of pay of Rs. 2200-4000.

ASSISTANT REGISTRAR AND EQUIVALENT POSTS :

1. A postgraduate degree with at least 55% marks or its equivalent grade.

NOTE : In the case of promotion to the post of Assistant Registrar and Deputy Registrar, the Educational Qualifications prescribed for direct recruitment need not be insisted upon, but only those who are at least graduates should be eligible for promotion.

भारतीय प्रौद्योगिकी संस्थान खड़गपुर
खड़गपुर-७२१ ३०२
Indian Institute of Technology Kharagpur
Kharagpur - 721 302

प्रोफेसर डी. आचार्य, एफ एन ए ई, एफ एन ए एस सी
निदेशक
Prof. D. Acharya, FNAE, FNASc
Director

No. D/M-6/
August 14, 2010

Dear Shri Kumar,

This has reference to MHRD letter F. No. 4-6/2007-TS.I dated July 12, 2010 forwarding a reference from PMO's vide ID No.11/3/2010-PMP 2/182276 dated 5.7.2010 forwarding a representation dated 18.6.2010 from Shri J K Pal.

Shri Pal has made baseless allegations which are nothing but a figment of his imagination.

However, the representation of Shri Pal pertains mainly to two issues namely Recruitment Procedure against advertisement No. R/9/2009 dated Dec 2, 2009. In this connection it is to state that no offers of appointment were ever made against the said advertisement. Dr. T K Ghosal who is Ph. D . from Ranchi University is a Deputy Registrar at this institute who has been given officiating charge of the post of Registrar against a lien vacancy. For the officiating charge, an existing Deputy Registrar at the institute is entitled .

As regards, Dr V C Vivekanandan it is to state that Dr Vivekanandan has already reverted to NALSAR, University of Law Hyderabad , his parent organisation.

The faculty roster and roster for all other posts are maintained at this institute for recruitment as per GoI orders issued from time to time.

With regards,

Yours sincerely,

D Acharya

(D. Acharya)

Shri Yatendra Kumar
Under Secretary to the
Government of India
Ministry of Human Resource Development
Department of Higher Education, TS-I
Shastri Bhavan
New Delhi – 110 115

OFFICE : Phone : +91 3222 282002 Fax : +91 3222 282000/255239, e-mail : director@iitkgp.ernet.in
RESIDENCE : Director's Bungalow, IIT Campus, Kharagpur 721302, Phone : +91 3222 282003/277201

F.No.4-8/2010-TS.I
Government of India
Ministry of Human Resource Development
Department of Higher Education
Technical Section – I

Shastri Bhawan, New Delhi
Dated: 8th August, 2011
16th

OFFICE MEMORANDUM

Subject: Allegation of violation of reservation policy and caste discrimination made by Shri J.K. Pal, Ex-Asstt. Registrar, IIT-Kharagpur.

The undersigned is directed to refer to the Lok Sabha Secretariat, SCTC Branch, OM No. 8(142)/SCTC/2011, dated 13th April, 2011 on the aforesaid subject wherein Shri JK Pal, an Ex-Asstt. Registrar, IIT-Kharagpur, complained against non-implementation of reservation policy by the Institute. Shri Pal also enclosed a number of newspaper clippings leveling allegations of corrupt practices being followed by the Institute's authorities.

2. The matter has been taken up with IIT-Kharagpur and it is revealed that:

(a) Shri JK Pal was appointed in IIT-Kharagpur as an Asstt. Registrar against the reserved vacancy for OBC and worked from 03.08.2000 to 09.04.2008 in different Sections of the Institute. Shri Pal initially submitted his OBC Certificate No. 0173 dated 10.05.1995, without mentioning the creamy layer status. On asking for submission of the creamy layer status, he submitted a Duplicate Certificate No. 0173, (manually corrected from 0008), dated 10-05-1995.

(b) However, while both the original and duplicate certificates were dated 10.05.1995, the signatures of the Sub-Divisional Officer, Siliguri on the upper right corner of the certificate and the photograph of the individual were dated 16.08.07. On close scrutiny of the Certificate as submitted by Shri Pal on 20.07.2007, showing as duplicate of the Certificate as submitted by him on 19.09.2000, indicates following deviations:

(i) In the present Certificate, 'No. 0008' has been corrected manually as 'No. 0173' with the same date 10.05.1995. In the earlier Certificate there was no such correction.

(ii) The earlier certificate was in the FORM OF CERTIFICATE FOR OTHER BACKWARD CLASSES, but the duplicate certificate indicated CERTIFICATE FORM FOR BACK-WARD CLASSES.

(iii) The language of the duplicate copy is different from the certificate bearing No. 0173 dated 10.05.1995 as submitted by Shri Pal initially.

(iv) In the earlier certificate of the same number and date, there was no indication of creamy layer, but in the Duplicate Certificate the Creamy Layer term has been inserted together with other modifications. Earlier Certificate did not possess those information.

3. The then Legal Adviser to the IIT-Kharagpur, Late Shri PC Chunder, who scrutinised the copies of the certificates, concluded that the Duplicate Certificate, as submitted by Shri JK Pal on 20.08.2007, may not be considered as 'Duplicate' and the matter may be brought to the notice of the appropriate authority whether an enquiry be made for the genuineness of such Certificates in consultation with some well known Criminal Lawyer.

Contd 2/-

4. Accordingly, the issue was referred to Shri PC Bose, Advocate, who examined the Certificates threadbare *vis-à-vis* the Government of India instructions and was of the view that ex-facie both the said Certificates are of doubtful origin and validity and may have been fabricated or manufactured for the purpose of securing employment with the IIT-Kharagpur. Consequently, it was *inter-alia* opined that the Institute should issue was show-cause notice to Shri JK Pal and, on receipt of his reply thereto, refer the matter to the Disciplinary Committee to hold a domestic inquiry in under the relevant statutory rules and, in accordance with its findings, take appropriate action as per rules. In addition to the above, it was also advised that the Institute may initiate criminal action by lodging an FIR with the local police under various sections of the Indian Penal Code and, if necessary, also file an application under Section 156(3) of the Code of Criminal Procedure, 1973 before a Magistrate having jurisdiction. The Legal Adviser to the Institute, Late Shri PC Chunder, while agreeing with the line suggested by Shri PC Bose, Advocate, advised for initiating an inquiry against Shri JK Pal.

5. It has further been stated that Shri JK Pal took up an assignment as the Principal of Binoda Law College, run by Binoda Law Educational Trust, from 04.04.2006 to 10.05.2006, wherefrom he reportedly did not draw any salary. However, enquiry by the Institute's Legal Adviser indicated that the very existence of the Binoda Law College was doubtful and Shri Pal's service therein without drawing any salary being suspect. Shri JK Pal, however, left IIT-Kharagpur on 10.04.2008 to join ISI Kolkata, whereafter he resorted to make various allegations, including caste discrimination, against the officials of the Institute and sending copies, paper clippings, etc, to various quarters, like the PMO, CVC, etc. On an earlier occasion, a reference received from the Central Vigilance Commission through the Vigilance Division of this Ministry was replied to, a copy of which is enclosed (Annexure-I).

6. IIT-Kharagpur have categorically indicated that there has been no incidence of violation of the Government of India's reservation policies and the Institute strictly follows the reservation rules in both faculty and non-faculty positions. It may be pertinent to mention here that IIT-Kharagpur had advertised on 15.12.2010 *inter-alia* two posts of Dy. Registrar, including one reserved for OBC. Out of 18 short-listed candidates, one is from Shri JK Pal, who will also be considered alongwith other applicants.

7. It is clear from the report of IIT-Kharagpur that a *bona-fide* doubt on OBC (non-creamy layer) Certificate of Shri JK Pal and subsequent inquiry thereon, made him resorting to such allegations. The detailed legal opinions of IIT-Kharagpur's designated Legal Officers are also enclosed for reference (Annexure-II).

(PRAKHAR VIPLAVA GUPTA)
Dy. Secretary to the Govt. of India
Ph.No. 2338 1882

To

The Lok Sabha Secretariat,
SCTC Branch,
(Shri Mukesh Kumar, Committee Officer),
Parliament House, New Delh

INDIAN INSTITUTE OF TECHNOLOGY

21

Name of the post : ASSISTANT REGISTRAR Vacancy :

No. of Candidates called : 15 (Fifteen) No. of Candidates appeared :

The Selection Committee comprising the following

1. Prof. K.L. Chopra, Director - Chairman
2. Prof. R.K. Banerji, Dy. Director Member
3. Prof. N.P. Rao, Dept. of I E & M Member
4. Prof. R.N. Banerjee, Dept of I E & M Member
5. Lt. Col.(Retd) S. Chander, Registrar Member
6.

met on 28.02.94 at 3.30 P.M.

The Committee recommends the following for appointment :

1. Mr. N.R. Hatty on a basic pay of Rs. 2650/-
2. Mr. T.K. Ghosh on a pay of the first time of appointment.

Signature of the members

1. 28/2/94
2. 28/2/94
3. 28/2/94
4. 28/2/94
5. 28/2/94